

Chapter 11: Motor Vehicle Crashes

Most crashes in Texas result from speeding, failure to yield or stop appropriately, and driving under the influence of alcohol. If requested and available, exchange names, addresses, phone numbers, vehicle identification numbers, vehicle license plate numbers, driver license information, and insurance information with all drivers involved in the crash. Write the insurance company name and policy number exactly as it is shown on the driver's proof-of-insurance card. If you have the name of the driver's insurance company and the information is not listed directly on the insurance card, call the Texas Department of Insurance at (800) 252-3439 to get the company address and telephone number. Be sure to also note the location of the crash and write down the contact information if there are any witnesses.

You should always notify the appropriate law enforcement agency as soon as possible when:

- There is an injury or fatality
- The vehicles involved cannot be moved off the roadway
- A driver leaves the scene of the crash
- You suspect a driver is intoxicated.

If you are involved in a crash that is not investigated by a law enforcement officer and the crash has not resulted in injury or death of a person or damage to property of \$1,000 or more, you must make a written report of the crash and file it with the Texas Department of Transportation (TxDOT) no later than the 10th day after the date of the crash. The written report must be on a TxDOT specified form. For a copy of this form, please visit the TxDOT website at www.txdot.gov.

Crash Resulting in Injury to, or Death of a person

If you are operating a motor vehicle involved in a crash resulting in injury to or death of a person, you must immediately stop your vehicle at the scene of the crash (or as close as possible to the scene of the crash) without obstructing traffic more than necessary. If you did not stop your vehicle at the scene, you must immediately return and remain at the scene of the crash until you have complied with the following:

1. Provide your name and address, the registration number of the vehicle you were driving, and the name of your motor vehicle liability insurer to any person injured, or to the operator or occupant of, or person attending a vehicle involved in the collision
2. Show your driver license (if requested and available) to any person injured, or to the operator or occupant of, or person attending a vehicle involved in the collision
3. Provide any person injured in the crash reasonable assistance including, transporting or making arrangements for transporting the person to a physician or hospital for medical treatment, if it is apparent treatment is necessary, or if the injured person requests the transportation.

Table 33: Penalties for Failure to Stop

Offense	Penalty
1st offense crash resulting in a death of a person	Second degree felony punishable by a fine not to exceed \$10,000 and imprisonment in the Texas Department of Criminal Justice (TDCJ) for 2 to 20 years.
1st offense crash resulting in serious bodily injury	Third degree felony punishable by a fine not to exceed \$10,000 and imprisonment in the Texas Department of Criminal Justice (TDCJ) for 2 to 10 years.
1st offense crash resulting in injury	Imprisonment in the Texas Department of Criminal Justice (TDCJ) for up to 5 years or confinement in the county jail for up to 1 year; a fine not to exceed \$5,000; or both a fine and imprisonment.

Crash Resulting in Damage to a Vehicle

If you are operating a motor vehicle involved in a crash resulting **ONLY** in damage to a vehicle that is driven or attended by a person, you must immediately stop your vehicle at the scene of the crash or as close as possible to the scene of the crash without obstructing traffic more than necessary. If the crash occurs on a main lane, ramp, shoulder, median, or adjacent area and each vehicle involved can be normally and safely driven, drivers must move their vehicle as soon as possible to a designated crash investigation site, if available, a location on the frontage road, the nearest suitable cross street, or other suitable location. If you did not stop your vehicle at the scene, you must immediately return and remain at the scene of the crash until you have complied with the following:

1. Provide your name and address, the registration number of the vehicle you were driving, and the name of your motor vehicle liability insurer to any person injured, or to the operator or occupant of, or person attending a vehicle involved in the collision
2. Show your driver license (if requested and available) to any operator or occupant of, or person attending a vehicle involved in the collision